

1. Cross-Defendants' Jane Doe 1, Guardian Ad Litem of Jane Doe 1; Jane Doe 2; Parent of Jane Doe 2; Jane Doe 3, Guardian Ad litem of Jane Doe 3; Jane Doe 4 and Guardian Ad Litem of Jane Doe 4's ("Cross Defendants") unopposed Demurrer to Cross Complainant Nicholas Moseby's Amended Cross Complaint filed on November 3, 2025 is sustained without leave to amend. Cross-Defendants' counsel shall prepare and e-file a proposed order that conforms to this ruling no later than five (5) days from the date of this hearing, attaching a copy of this tentative ruling.
2. Cross Defendants unopposed Motion to Strike Portions of Cross-Complainant Nicholas Moseby's Amended Cross-Complaint filed on November 3, 2025 is granted without leave to amend. Cross-Defendants' counsel shall prepare and e-file a proposed order that conforms to this ruling no later than five (5) days from the date of this hearing, attaching a copy of this tentative ruling.
3. No appearance is required at the hearing on March 4, 2026.

8. 9:00 AM CASE NUMBER: C24-03038
CASE NAME: JANE DOE 1 VS. SAN RAMON VALLEY UNIFIED SCHOOL DISTRICT
HEARING ON DEMURRER TO: MOSEBY'S AMENDED CROSS COMPLAINT
FILED BY: JANE DOE 1
TENTATIVE RULING:

See Line no. 7, above.

9. 9:00 AM CASE NUMBER: C24-03411
CASE NAME: JULIE ROMANOWSKI VS. AVI ELIAHU
***HEARING ON MOTION IN RE: QUASH OR ALTERNATIVELY MOTION FOR PROTECTIVE ORDER**
FILED BY: VAIL RESORTS MANAGEMENT COMPANY
TENTATIVE RULING:

Summary

Third Party Vail Resorts Management Company's Motion to Quash or in the alternative, Motion for Protective Order is granted as set forth herein.

Background

In this litigation, Plaintiff Julie Romanowski ("Plaintiff" or "Romanowski") alleges that Defendant Avi Eliahu ("Defendant" or "Eliahu") was recklessly skiing on December 24, 2022, while at Northstar California Ski Resort. Defendant collided with Plaintiff, causing her serious injuries, including shattering her pelvis, which resulted in a month stay at the hospital. The incident caused her to sustain significant damages.

On December 1, 2025, Romanowski served a Deposition Subpoena for Personal Appearance to the

“Person Most Qualified on behalf of non-party Vail Resorts Management Company” on ten separate topics, seeking a deposition on December 17, 2025 (the “Subpoena”). (Decl. 4, ¶Exh. A). The topics related primarily to the “Responsibility Code” that is posted on the website of the resorts affiliated with VRMC. Plaintiff claims that portions of the Responsibility Code have been codified in ordinances that were adopted by Placer County.

VRMC’s in-house counsel had previously engaged in meet-and-confer discussions with Romanowski’s counsel regarding a draft version of the Subpoena on November 20, 2025, but the parties were not able to reach agreement on the scope of the subpoena. (Penwarden Decl. ¶ 5, Exh. B).

On December 11, 2025, Vail Resorts Management Company (“VRMC”) filed Motion to Quash Deposition Subpoena for Personal Appearance by Persons Most Knowledgeable, or, in the alternative, a Motion for Protective Order. The Motion is supported by notice, Memorandum of Points and Authorities, and Declaration of Counsel Jill Hawley. Northstar is not a party to the litigation, nor is its operator, Trimont Land Company. VRMC, a Colorado corporation which is an affiliate of Trimont Land Company, similarly is not a party to this action. (Penwarden Decl. ¶ 2.) VRMC is not a party, does not own or operate Northstar, and has no connection to this action other than being a company affiliated with the resort owner. VRMC claims that Romanowski has served a subpoena on VRMC seeking “irrelevant and unduly burdensome testimony from a “Person Most Qualified” on ten separate topics pertaining to VRMC’s general “expectations” of skier conduct, and the reasons behind why certain information was included on Northstar’s website. (Penwarden Decl. ¶¶ 3, 4, Exh. A)”

On February 19, 2026, Plaintiff filed an opposition to the Motion, supported by a Memorandum of Points and Authorities and Declaration of Counsel Ravn Whittington. Plaintiff argues that the corporate distinction between Northstar, Trimont and VRMC is a distinction without as difference, as they share the same corporate officers. Moreover, the information sought is relevant as it is reasonably calculated to lead to the discovery of admissible evidence.

VRMC filed a reply brief on February 25, 2026 claiming that it is a third party not involved in this litigation. As such, any discovery arising out of the deposition would be irrelevant and admissible.

Analyses

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery

practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

Cal. Code of Civ. Proc § 1987.1 allows a non-party to file a motion for "an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person."

Here, VRMC asserts that this Court's consideration of witness testimony or other evidence is limited in primary assumption of risk cases, because it is the Court's responsibility to determine the legal questions of what the inherent risks of the sport or activity are, and whether the defendant breached a duty to plaintiff by increasing those risks. (*Towns v. Davidson* (2007) 147 Cal. App. 4th 461, 472-473). Because the deposition subpoena seeks testimony from a non-party about the assumption of risk, it is not likely to lead to the discovery of admissible evidence. The Court agrees with this general assessment.

VRMC contends that "The nature and risks of downhill skiing are commonly understood" and "the demarcation of any duty owed is judicially defined." (Id. at p. 473). This is an objective inquiry; a party's expectations or subjective appreciation of the risks involved in their activity is neither relevant nor admissible. (*Knight v. Jewett* (1992) 3 Cal.4th 296, 315-316; *Swigart v. Bruno* (2017) 13 Cal.App.5th 529, 538; *Whelihan v. Espinoza* (2003) 110 Cal.App.4th 1566, 1573; *Bushnell v. Japanese-Am. Religious & Cultural Ctr.* (1996) 43 Cal.App.4th 525, 534).

Applied here, the testimony Plaintiff seeks from VRMC has little relevance to the Court's determination of this question of law. What non-party VRMC may have "expected" a skier to do, or the "reasons" behind why it posted or linked to certain information on a website, are not expected to provide discoverable evidence that define the inherent risks of skiing, or what Defendant's duty was to plaintiff, or whether Defendant breached that duty. Those are legal questions and not the appropriate topic of discovery for a non-party. (*Cheong v. Antablin* (1997) 16 Cal.4th 1063; *Towns, supra*, 147 Cal. App. 4th 461; *Lackner v. North* (2006) 135 Cal.App.4th 1188; *Mastro v. Petrick* (2001) 93 Cal.App.4th 83). As such, the Court finds that any deposition that seeks this information from VRMC as set forth in Plaintiff's subpoena is not likely to lead to the discovery of admissible evidence. As such, the Court finds that it is appropriate under Section 1987.1 to quash this subpoena duces tecum and deposition notice.

Ruling

VRMC's Motion to Quash is **granted** without prejudice. Plaintiff's Subpoena to VRMC is quashed and VRMC, as a non-party, has no obligation to comply with the deposition subpoena serve by Plaintiff.

VRMC shall prepare and e-file a proposed order conforming to this ruling and attach a copy of the Court's tentative ruling.

10. 9:00 AM CASE NUMBER: C25-00714
CASE NAME: PETER DRAGOLOVICH VS. BROOKE BUCHANAN
HEARING IN RE: PLAINTIFF'S DEMURRER TO CROSS-COMPLAINT
FILED BY: DRAGOLOVICH, PETER L
TENTATIVE RULING:

By stipulation of the Parties and Counsel, this hearing is continued to September 24, 2026. No appearance is required on March 4, 2026.

11. 9:00 AM CASE NUMBER: C25-02066
CASE NAME: INFOTECHTION LIMITED VS. BRIAN TUEMMELER
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: TUEMMELER, BRIAN
TENTATIVE RULING:

Defendants Brian Tuemmler and Infotechtion, LLC's demurrer to the first amended complaint is **continued to April 15, 2026**. No appearance is required at the March 4, 2026 hearing.

Defendants included a declaration claiming that they met the meet and confer requirements for a demurrer. Defendants' attorney sent an e-mail to Plaintiff's attorney regarding the initial complaint. Plaintiff's attorney responded, agreeing to make some changes. Plaintiff's counsel then filed a FAC without providing Defendant's attorney a draft in advance. Defendants' attorney states that FAC did not cure all the claim deficiencies in the complaint. Defendants' attorney then concludes "I took the filing of the First Amended Complaint in this form to indicate voluntarily resolution as to the outstanding deficiencies could not reasonably be reached and demurrer was appropriate. In light of this course of correspondence, I believe Defendants meet-and-confer obligations under CCP §430.41 have been met." (Garrett dec. ¶13.)

Before every demurrer is filed, the moving party must engage in a meet and confer with the opposing party in person, by telephone or by video conference. (Code of Civil Procedure section 430.41.) There is no indication that the parties met in person, by telephone or by video conference regarding the original complaint. Further, Defendants were required to engage in a new meet and confer process after the FAC was filed. Defendants did not comply with the meet and confer requirements. This matter is being continued to allow the parties time to properly meet and confer in person, by telephone or by video conference.

In addition, both the moving and opposing memoranda violated the Rules of Court. Defendants filed a 15-page brief without the required tables. (California Rules of Court, rule 3.1113(f).) Plaintiff filed an 18-page brief, which is beyond the 15-page limit. (California Rules of Court, rule 3.1113(d).) This matter is also being continued to allow the parties to comply with the Rules of Court.